

Simtora Technologies Pty Ltd

Australia HR Manual (Sydney)

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Applies to	All employees of Simtora Technologies Pty Ltd ("Simtora Australia" or "the Company") working in Sydney or elsewhere in Australia
Related manuals	Global People Supplement (SIM-HR-002); HR Policy Manual (SIM-HR-001); International Operations Supplement (SIM-GLB-001); IT Policy Manual (SIM-IT-001); Finance and Accounting Manual (SIM-FIN-001); Procurement Policy Manual (SIM-PRC-001); Code of Ethics and Compliance Manual (SIM-CMP-001); Facilities and Office Administration Manual (SIM-FAC-001)

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Introduction

This manual sets the employment terms for people who work for **Simtora Technologies Pty Ltd**, the Australian subsidiary of Simtora Technologies, Inc., in the **Sydney R&D Center**. Sydney has about 14 employees and builds the Simtora Insight data platform and provides the Asia-Pacific shift of Simtora's follow-the-sun reliability and support rota.

It sits within the framework of the Global People Supplement (SIM-HR-002) and replaces the U.S.-only parts of the HR Policy Manual (SIM-HR-001) for Australian employees. Australian employment law sets minimum standards, mainly the **National Employment Standards (NES)** and any **modern award** that covers the employee. **Nothing in a contract or this manual can take away the NES or award entitlements.**

Principles

1. We comply with the Fair Work Act, the NES and any applicable award, and we go beyond them where we can.
 2. Every employee gets the Fair Work Information Statement on or before their first day.
 3. We take workplace safety, psychological safety and the positive duty to prevent sexual harassment seriously.
 4. We respect the right to disconnect.
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Part 1 – Employer, Legal Framework and Scope

1.1 Employer and Scope

- The employer is **Simtora Technologies Pty Ltd**, an Australian proprietary company registered with ASIC and in the national workplace relations system as a constitutional corporation. The **Director of the Sydney R&D Center** (an Australian-resident director) leads the site.
- The manual applies to all employees (full-time, part-time, fixed-term, and any casual employees) and to interns where they are employees. It applies to contractors only through their contracts; HR and Legal review contractor arrangements for **sham contracting** and the "employee-like" worker rules.
- HR support: the International HR Lead and the Sydney HR partner (`hr-intl@simtora.example`), with an external payroll provider and Australian employment counsel.

1.2 Legal Framework

Area	Main law
Employment standards	Fair Work Act 2009 (Cth), including the National Employment Standards and general protections; Fair Work Regulations
Awards	Modern awards (for example, Professional Employees Award 2020 or Clerks – Private Sector Award 2020, depending on the role)
Minimum wages	Annual Wage Review of the Fair Work Commission (effective July 1)
Parental pay	Paid Parental Leave Act 2010 (Cth)
Superannuation	Superannuation Guarantee (Administration) Act 1992 (Cth)
Long service leave	Long Service Leave Act 1955 (NSW)
Safety	Work Health and Safety Act 2011 (NSW) and Regulation; Workers Compensation Act 1987 (NSW)
Anti-discrimination	Sex Discrimination Act 1984; Racial Discrimination Act 1975; Disability Discrimination Act 1992; Age Discrimination Act 2004 (all Cth); Anti-Discrimination Act 1977 (NSW)
Privacy and surveillance	Privacy Act 1988 (Cth); Workplace Surveillance Act 2005 (NSW)
Whistleblowers	Corporations Act 2001 (Cth), Part 9.4AAA
Tax and payroll	Income Tax Assessment Acts; PAYG withholding; Single Touch Payroll; Payroll Tax Act 2007 (NSW)

1.3 How the HR Policy Manual Applies in Australia

See SIM-HR-002 Section 1.2. In short:

- **Not applicable:** at-will employment, FLSA, PTO, sick and safe leave, FMLA, 401(k), COBRA, paid holidays, resignation, termination, job abandonment and final pay (SIM-HR-001 1.2, 6.1–6.4, 6.9, 9.1–9.4). This manual replaces them.

- **Apply with changes in this manual:** onboarding, probation, pay, expenses, monitoring, attendance, corrective action, PIPs, accommodation, safety, hours, flexible and hybrid work, on-call, parental leave, equipment, travel.
- **Apply as written:** conduct, performance, grievances, anti-harassment standards, speaking up, dress code, relationships, bereavement, learning, mobility, recognition.

1.4 Local Authorities and Contacts

Subject	Body
Employment standards, awards, pay	Fair Work Ombudsman; Fair Work Commission (unfair dismissal, general protections, flexible work disputes)
Safety	SafeWork NSW
Workers compensation	icare / State Insurance Regulatory Authority (SIRA)
Privacy	Office of the Australian Information Commissioner (OAIC)
Discrimination	Australian Human Rights Commission; Anti-Discrimination NSW
Tax and superannuation	Australian Taxation Office (ATO); Revenue NSW (payroll tax)
Corporate	ASIC
Whistleblowers	ASIC, APRA, ATO as relevant

Part 2 – Hiring, Contracts and Probation

2.1 Recruitment, Right to Work and Background Checks

- Job advertisements state the **pay range** (SIM-HR-002 1.7). Simtora does not ask about pay history or ask discriminatory questions.

- Before an employee starts, HR checks **work rights** (citizenship, permanent residency or a visa with work rights) using the Department of Home Affairs' VEVO or equivalent. The Company does not allow anyone to work without verified rights. Visa sponsorship (for example, a Skills in Demand visa) is only for roles approved in advance (SIM-HR-002 1.10).
- Background checks (identity, qualifications, referees) need consent. Police checks only for roles where relevant, with consent and compliance with spent convictions law.
- Candidate data is deleted within **12 months** of rejection unless the candidate agrees to a longer period.

2.2 Employment Contracts, Awards and Categories

- Every employee has a **written employment contract** before or on the first day, with: role, location, employment type, hours, pay and super, probation, notice, leave, confidentiality and IP terms, and the status of award coverage.
- The employee must receive the **Fair Work Information Statement** on or before their first day (and the **Casual Employment Information Statement** for casual employees).
- **Award coverage.** HR decides at hire whether a modern award covers the role.
 - **Award-covered employees** (earning below the **high income threshold** set each July, or not subject to a written guarantee of annual earnings) receive at least the award minimum rates, overtime, penalty rates, allowances and leave loading, and the Company reconciles an annualised salary against the award each year.
 - **Award-free employees** (earning above the high income threshold with a written guarantee of annual earnings that the Company reviews yearly) are covered by the NES and their contract; the salary covers reasonable additional hours.
- **Employment types.** Full-time (38 hours), part-time (fewer, with set hours), fixed-term (only for a project or a replacement; subject to Fair Work Act limits on the length and renewal of fixed-term contracts for employees below the high income threshold), and casual (rarely; the casual conversion rules apply). Contractors and interns are covered in 1.1.
- The Company follows the **NES casual employee pathway**: at 12 months, a casual regularly working a pattern is offered conversion unless there are reasonable grounds to refuse.

2.3 Probation

- Probation is **6 months** from the start date, which matches the minimum employment period for unfair dismissal (employers that are not a small business).
- **Notice during probation: 1 week** from either side (the NES minimum for service under 1 year).
- A probation review (SIM-HR-001 Appendix C) is held at months 2 and 5. HR confirms the outcome in writing before the end of the period.
- Probation does not reduce NES rights, leave accrual, super, protection from discrimination or from adverse action for exercising a workplace right. The Company does not dismiss during probation for a reason the law prohibits (for example, illness, pregnancy, making a complaint).

2.4 Onboarding

Follow SIM-HR-001 1.3 and SIM-HR-002 Appendix C with these local steps: Fair Work Information Statement; work-rights check; Tax File Number declaration; superannuation choice form (the Company offers the Standard Choice Form within **28 days** of the start); bank details; WHS induction; surveillance notice at least 14 days before computer surveillance starts (8.2); privacy notice. Mandatory training (security, privacy, code of conduct, anti-harassment and sexual-harassment prevention) is completed within **30 days**.

Part 3 – Working Time, Remote Work and On-Call

3.1 Ordinary Hours and Breaks

Item	Rule
Ordinary hours	

3.2 Overtime and Reasonable Additional Hours

- **Award-covered employees:** overtime and penalty rates, or time off in lieu (TOIL) by written agreement, as the applicable award says. The Company keeps time records.
- **Award-free employees:** the salary covers reasonable additional hours. Whether additional hours are **reasonable** depends on the risk to health and safety, personal circumstances, the needs of the workplace, pay, notice, usual patterns, and the employee's seniority and responsibility (Fair Work Act s 62). The employee may refuse unreasonable additional hours.
- The Company offers **TOIL** for significant extra hours, taken within 3 months at a time agreed with the manager. Where an incident causes unplanned work, see 3.5.
- All hours that require payment are recorded and paid.

3.3 Flexible Working and Hybrid Work

- **Hybrid by default:** anchor days **Tuesday to Thursday**, minimum 3 office days a week (SIM-HR-001 5.2).
- **Right to request flexible working.** An employee who has 12 months' service (or a long-term casual) and who is a parent or carer of a child of school age or younger, a carer, has a disability, is 55 or older, is experiencing family or domestic violence or supports someone who is, may request a change. The Company discusses it, **responds in writing within 21 days**, and refuses only on **reasonable business grounds** after genuinely trying to accommodate, with written reasons. Employees can seek the Fair Work Commission's help if the Company refuses.
- Fully remote roles are within Australia only; work outside Australia needs approval (SIM-HR-002 1.9).
- The Company provides equipment, a one-time home-office allowance (AUD equivalent of US 500 ~~or~~ 1,000) and a connectivity stipend (AUD equivalent of US \$75 a month). A home-office safety check is completed at set-up (8.1).

3.4 Right to Disconnect

- Under the Fair Work Act (s 333M), an employee may **refuse to monitor, read or respond to contact** (or attempted contact) from their employer or a third party **outside their working hours** unless the refusal is **unreasonable**. Factors include the reason for the contact, how it is made and the level of disruption, whether the employee is paid for being available, their role, and their personal circumstances.
- The Company does not penalize an employee for exercising this right. Managers do not contact employees outside hours except in genuine emergencies or for on-call duties.
- A dispute can go to the Fair Work Commission. The Company will first try to resolve any dispute with the employee.

3.5 On-Call and Follow-the-Sun

- Sydney provides the Asia-Pacific coverage of the Company's follow-the-sun rota. Regular on-call falls within **7:00 a.m. to 10:00 p.m.** Sydney time; overnight on-call is backup only for Severity 1 events (SIM-HR-002 1.6).
 - On-call is by rotation, not more than **one week in four** without consent, with at least 2 weeks' notice.
 - **On-call allowance:** an AUD allowance for each rotation week (not less than the applicable award's on-call allowance for award-covered employees), published on the intranet. Being on call is not working time unless the restrictions are so tight that the time is effectively work.
 - **Call-outs and recall:** time actually worked is paid (with overtime or penalty rates where an award applies) and counted toward limits, with a **minimum payment of 3 hours** for any recall to work outside normal hours (or the award's minimum if higher).
 - **Rest:** at least 10 hours' rest after a call-out before the next shift (the Company applies 11 hours as a standard). No loss of pay for a later start.
 - The right to disconnect (3.4) applies outside on-call duties.
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Part 4 – Pay, Payroll, Tax and Superannuation

4.1 Salary and Payment

- Salaries are in **Australian dollars (AUD)**, at or above the national minimum wage and any award rate.
- Pay is **fortnightly** by bank transfer, on **Friday**. A pay slip is issued within **1 working day** of payment and shows gross and net pay, tax, super, leave balances and hours where required.
- Annual pay reviews follow the Company's merit cycle, effective April 1 (and award rates change each July 1).
- Errors are corrected in the next pay run, or by an off-cycle payment within 3 business days if over AUD 500.

4.2 Deductions

The Company deducts only amounts required by law (PAYG withholding, garnishees) or that the employee has authorized **in writing** for their benefit and that comply with the Fair Work Act (s 324). **No deduction is made for loss or damage of Company property or for mistakes.** An overpayment is recovered only by agreement on a reasonable schedule or as the law allows.

4.3 Tax, Payroll Reporting and Superannuation

Item	Rule
PAYG withholding	Withheld each pay run and remitted to the ATO; the Company reports each pay through Single Touch Payroll (STP)
Superannuation guarantee	12% of ordinary time earnings, paid into the employee's chosen fund. From July 1, 2026 ("Payday Super") contributions are paid so that they reach the fund within 7 days of each payday; the Company pays with each pay run
Super on leave	Super is paid on Company-paid leave, including parental leave pay
Payroll tax and workers compensation	Paid by the Company (Revenue NSW; icare)
Tax-free thresholds, TFN	The employee completes a TFN declaration; employees without one are taxed at the highest rate
Annual summaries	Payment summaries are available through ATO online (STP finalization by July 14 each year)

4.4 Bonuses, Allowances and Equity

Item	Rule
Annual performance bonus	By plan document; bonuses are not part of award entitlements unless the contract says
On-call allowance	3.5
Home-office allowance and stipend	3.3
Learning budget	AUD equivalent of US \$1,500 a year and 40 hours of paid learning time
Equity	Employee share scheme awards only after Legal and Tax confirm the Australian tax and disclosure treatment (SIM-HR-002 1.7)
Novated lease / salary packaging	Optional through an approved provider; fringe-benefits-tax effects are explained to the employee

4.5 Expenses and Business Travel

- Claims follow SIM-HR-001 1.6 and SIM-FIN-001 4.7, in AUD, within 30 days, paid within 10 business days. Receipts must be valid tax invoices where GST applies.
 - Business travel follows SIM-HR-001 8.1 and SIM-HR-002 1.8. Because of long flight times to San Francisco and Europe, **premium economy** is allowed for flights over 6 hours; the Executive Team follows the table in SIM-HR-001.
 - Travel during working hours is working time; time at an airport or flying outside ordinary hours is addressed by TOIL (up to one day after a long-haul trip).
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Part 5 – Leave and Holidays

5.1 Public Holidays

- Employees are entitled to be absent on **public holidays** and are paid for them if they fall on a normally working day. In New South Wales there are up to **11 public holidays**: New Year's Day, Australia Day (January 26), Good Friday, Easter Saturday, Easter Sunday, Easter Monday, Anzac Day (April 25), King's Birthday (June), Labour Day (October), Christmas Day and Boxing Day. A holiday falling on a weekend is not replaced unless gazetted.
- An employer may request that an employee work on a public holiday if the request is reasonable; the employee may refuse if the refusal is reasonable. Work on a public holiday earns the award penalty rate where an award applies, or time off in lieu.
- **Floating observance.** Employees may take **2 days a year** of paid leave for cultural or religious days not on the public calendar (for example, Lunar New Year, Eid, Diwali, Yom Kippur, Orthodox Easter), with manager approval, in addition to leave in 5.2.

5.2 Annual Leave

Item	Rule
Entitlement	25 working days a year for a full-time employee (190 hours): 20 days (4 weeks, NES) plus 5 additional Simtora days (the additional days are contractual). Part-time pro rata.
Accrual	Accrues progressively each pay period according to ordinary hours; may be taken as it accrues
Loading	17.5% leave loading for award-covered employees where the award provides it (and for others, as the contract states)
Requests	In the HR system; the Company will not unreasonably refuse; decision within 3 business days
Excess leave	If an employee accrues more than 8 weeks of leave, the manager and HR agree a plan to take leave; the Company may direct leave as the award allows, after consultation
Cash-out	Only by a separate written agreement for each cash-out, at the same rate of pay, and only if at least 4 weeks of leave remain afterwards (as the NES and any award require)
Illness during leave	Personal leave may replace annual leave if the employee has a medical certificate or statutory declaration
Termination	Unused accrued annual leave and any loading owed are paid out
Winter and Christmas	Employees are encouraged to take at least 2 weeks continuously once a year

5.3 Personal/Carer's Leave

Item	Rule
Paid personal/carer's leave	10 days a year (76 hours for a 38-hour week), accrued progressively and cumulative
Uses	Employee's own illness or injury; care or support for a member of the employee's family or household who is ill, injured or has an unexpected emergency
Unpaid carer's leave	2 days per occasion when paid leave is used up (casuals too)
Evidence	A medical certificate, statutory declaration or other evidence that would satisfy a reasonable person, for absences of more than 2 consecutive days (the Company may ask for it for shorter absences where there is a reasonable concern)
Notice	As soon as practicable, normally before the start of the shift
Long illness	HR meets the employee to support return to work and adjust duties; income protection insurance (6.2) may apply; the Company does not dismiss an employee for temporary absence of less than 3 months in a 12-month period due to illness or injury with proper certificates (Fair Work Act s 352)
Mental health	Employees can use personal leave for mental health; the Employee Assistance Program is available

5.4 Parental Leave and Government Paid Parental Leave

Entitlement	Rule
Unpaid parental leave (NES)	Up to 12 months for each parent with 12 months' continuous service , plus a request for up to 12 more months ; birth or adoption; at least 10 weeks' notice and confirmation of dates 4 weeks before; leave may be taken flexibly (including up to 100 days of flexible unpaid parental leave)
Government Paid Parental Leave (PPL)	Up to 26 weeks (from July 1, 2026) at the national minimum wage, as the Paid Parental Leave Act sets out, for eligible parents (income and work tests), claimed from Services Australia and shared between parents as the law provides; superannuation is also payable on PPL
Simtora paid parental leave	Primary caregiver: 12 weeks at 100% of regular pay. Secondary caregiver: 6 weeks at 100% of regular pay , after 6 months' service (SIM-HR-002 1.5); taken within 12 months of birth or placement
Coordination	The Company pays full pay for the 12 or 6 weeks. If the employee also receives government PPL for the same weeks, the Company's payment is reduced by the PPL received, so the employee receives 100% in total. Super is paid on the Company-paid leave.
Keeping in touch	Up to 10 paid "keeping in touch" days
Return	The same or an equivalent role; the employee may request flexible work (3.3), part-time hours or a phased return; lactation time and a private room (SIM-FAC-001)
Pregnancy	Employees may transfer to a safe job if their usual job is unsafe, with no loss of pay; no-safe-job leave if there is none; time off for pre-natal appointments
Stillbirth, miscarriage and loss	Up to 5 days' paid leave for the employee or partner, in addition to unpaid leave rights the NES gives

5.5 Compassionate, Family and Domestic Violence, and Community Service Leave

Leave	Rule
Compassionate / bereavement	5 paid days per occasion for the death or life-threatening illness of a spouse, partner, child, parent, sibling, grandparent, grandchild or household member; 3 paid days for other close relatives or friends (NES minimum: 2 days per occasion)
Family and domestic violence leave	10 days of paid leave a year (available in full from day 1, not cumulative), for any employee including casuals, to deal with family or domestic violence; handled in strict confidence. The Company does not require disclosure beyond what is needed and may offer other support (changes to hours, location, safety plan).
Community service	Unpaid time for voluntary emergency management activities (for example, as a rural fire or SES volunteer) with reasonable notice, paid leave for up to 10 working days for jury service , which is topped up to regular pay
Voting	Reasonable time to vote at a federal, state or local election
Volunteer time	2 paid days a year (SIM-HR-001 6.7)
Unpaid personal leave	Up to 90 days with 12 months' service (SIM-HR-001 6.8)
Study leave	Up to 5 paid days a year for approved exams
Military reserve	Leave for service in the Australian Defence Force Reserve as the Defence Reserve Service (Protection) Act provides

5.6 Long Service Leave

- Under the **Long Service Leave Act 1955 (NSW)**, employees who have completed **10 years of continuous service** are entitled to **2 months (about 8.67 weeks) of paid long**

service leave, plus 1/60 of the period of service beyond 10 years (about one extra month for each further 5 years).

- An employee with **at least 5 years' service** whose employment ends for a reason other than serious misconduct is paid a **pro-rata** amount. Service with Simtora counts continuously; breaks of less than the legal limit do not break service.
 - Long service leave may be taken in blocks of at least one week, with the Company's agreement. HR provides a balance on request.
 - The Company accrues for this liability in its accounts (SIM-FIN-001 2.8).
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Part 6 – Benefits

6.1 Superannuation Benefits

- The Company pays the **12% super guarantee** (4.3). In addition, the Company **matches employee voluntary (personal or salary-sacrificed) contributions up to 3% of ordinary salary** ("super match").
- The default fund for employees who do not choose one is a **MySuper** fund selected by the Company after due diligence; employees may choose any eligible fund (stapled-fund rules apply).
- Super is paid on Company-paid parental leave and on paid leave.

6.2 Insurance and Wellbeing

Benefit	Detail
Group life and total and permanent disability cover	Through the super fund; cost paid by the Company
Income protection	Group income protection for illness or injury (the Company pays the premium for the standard benefit period)
Employee Assistance Program	Free confidential counseling for employees and household members, 24/7
Wellness stipend	In AUD; some items may be taxable
Flu vaccination and health assessments	Offered annually

6.3 Other Benefits

- Shared lunch on anchor days; Company laptop and equipment; learning budget; recognition (SIM-HR-001 7.3, in AUD).
 - Optional novated lease (4.4).
 - **Public transport:** Opal card top-up of AUD 25 a week for employees who commute by public transport on office days.
 - Annual all-hands in San Francisco for selected representatives, and team gatherings in Sydney.
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Part 7 – Equality, Respect, Employee Voice and Speaking Up

7.1 Anti-Discrimination and Equal Opportunity

- The Fair Work Act prohibits **adverse action** (including dismissal and refusal to hire) because of race, colour, sex, sexual orientation, breastfeeding, gender identity, intersex status, age, physical or mental disability, marital status, family or carer's responsibilities, pregnancy, religion, political opinion, national extraction or social origin, and for exercising workplace rights. Federal and NSW anti-discrimination laws add more grounds. Simtora's standard (SIM-HR-002 1.4) covers all of these and more.
- **Reasonable adjustments** are made for disability, pregnancy, religion and caring responsibilities (SIM-HR-001 4.1).
- **Pay transparency and equal pay:** pay ranges are published; equal remuneration for work of equal or comparable value; the Company's pay-equity analysis covers Sydney. (Gender pay gap reporting to the Workplace Gender Equality Agency is a legal duty for employers with 100 or more employees in Australia; Simtora Australia is below the threshold but reports voluntarily to the Executive Team.)
- **First Nations people:** the Company welcomes First Nations employees, acknowledges Country at major meetings, and supports cultural leave for ceremonial obligations (up to 3 paid days a year for ceremonial business and NAIDOC events).

7.2 Sexual Harassment, Bullying and the Positive Duty

- **Positive duty.** Under the Sex Discrimination Act, the Company has a duty to take **reasonable and proportionate measures** to eliminate sex discrimination, sexual harassment, sex-based harassment, hostile workplace environments and victimization, as far as possible. The Australian Human Rights Commission can investigate and enforce the duty. The Company meets the duty through: risk assessment, policies, training for all and managers, accessible reporting, support, and monitoring and review of outcomes. The CPO reports annually to the Executive Team and Audit Committee.
- **Sexual harassment** is unwelcome conduct of a sexual nature that a reasonable person would anticipate would offend, humiliate or intimidate. It is a valid reason for dismissal; the Fair Work Commission can make orders to stop it. Victims may complain to the Company, the AHRC or the Fair Work Commission.
- **Workplace bullying** is repeated unreasonable behavior directed at a worker that creates a risk to health and safety. Workers can apply to the Fair Work Commission for a **stop-bullying order**. Reasonable management action carried out reasonably is not bullying.

- **Procedure.** Report to the manager, Sydney HR partner, Ethics Line or the Audit Committee. The Company acknowledges the complaint within **2 business days**, investigates promptly and fairly, protects the complainant from victimization, and tells both parties the outcome. Compliance is informed of every case (SIM-CMP-001 2.4).
- **Psychosocial hazards** (such as harassment, excessive workload, low job control, poor support) are managed as safety risks (8.1).

7.3 Grievances and Dispute Resolution

1. Raise it with your manager or HR (verbal or written).
2. Formal written grievance to HR: acknowledged within **3 business days**, investigated, with a written response within **15 business days**.
3. Appeal to the International HR Lead and the Director within **10 business days**.
4. External: Fair Work Commission or Fair Work Ombudsman. Employees may bring a support person to any meeting about a grievance, discipline or termination.

The Company does not take adverse action against an employee for making a complaint or enquiry, or for exercising a workplace right.

7.4 Employee Representation and Consultation

- Employees may join a union or choose not to, and may be represented by a union in workplace matters. The Company respects **freedom of association** and will not dismiss or disadvantage anyone for union membership or activity.
- Authorized union officials may enter the workplace as the Fair Work Act allows (with a valid permit and notice).
- **Consultation.** Where an award or agreement applies, the Company consults employees (and their representatives) about **major workplace changes** such as restructuring, redundancy or changes to hours or rosters. The Company will also consult voluntarily even for award-free staff.
- **Enterprise bargaining.** Simtora Australia is not covered by an enterprise agreement. If a majority of employees ask, the Company will bargain in good faith as the Act requires.
- The Director holds an employee forum at least twice a year.

7.5 Speaking Up (Whistleblowing)

- Employees, former employees, contractors, suppliers and their relatives may make **protected disclosures** under the Corporations Act about misconduct or an improper state of affairs in relation to the Company. Protected disclosures can be made to an officer or senior manager, the Company's auditor, the Ethics Line (`ethics@simtora.example` , anonymous reports accepted), the Audit Committee (`audit@simtora.example`), or ASIC, APRA or the ATO; in limited cases **public interest** or **emergency** disclosures to a journalist or politician.
 - Protection: identity confidentiality (it is an offense to disclose the identity or information likely to lead to it, except as the law allows); protection against detriment or victimization; compensation and remedies; immunity from civil, criminal and administrative liability for the disclosure.
 - The Company acknowledges disclosures within 5 business days, investigates fairly, protects the whistleblower and keeps them informed (SIM-CMP-001 2.1–2.5). Personal work-related grievances are generally dealt with under 7.3 and are not protected disclosures unless the Act says so.
 - Simtora Australia applies a whistleblower policy aligned to the Corporations Act even where the legal threshold for requiring a policy is not met.
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Part 8 – Safety, Privacy and Intellectual Property

8.1 Work Health and Safety

- The Company, as a **person conducting a business or undertaking (PCBU)**, must ensure, so far as is reasonably practicable, the health and safety of workers and others, including at home when working remotely. **Officers** (the Director and other directors) must exercise **due diligence**.

- **Risk management.** Hazard identification and risk assessments for offices, remote work and psychosocial hazards; consultation with workers; emergency plans; first aid (at least 2 trained first aiders; fire wardens); incident reporting.
- **Psychosocial hazards.** NSW law requires the Company to manage risks to psychological health. The Company monitors workload, on-call load, harassment and bullying, and organizational change, and acts on survey results.
- **Notifiable incidents.** Serious injuries or illnesses, deaths and dangerous incidents must be notified to **SafeWork NSW immediately** (HR and Facilities do this; employees report to their manager at once). The scene is preserved. Employees report all injuries and near misses the **same day**.
- **Workers compensation.** The Company holds the required insurance (icare). Injured employees may claim weekly payments, medical expenses and return-to-work support. The Company supports return-to-work planning and does not discourage or retaliate against claims.
- **Remote work.** Employees complete a home-workspace checklist at set-up and every 12 months. The WHS duty applies, and the Company may require changes (for example, an adjustable chair).
- **Emergency numbers: 000** (police, fire, ambulance) and the site security line. **Bushfire smoke, storms and floods** are managed under SIM-FAC-001.
- Employees may stop unsafe work, and cannot be penalized for doing so in good faith.

8.2 Privacy, Workplace Surveillance and Records

- **Privacy Act.** The Australian Privacy Principles apply to the Company's handling of personal information except that private-sector **employee records** may fall within the Act's employee-records exemption; the Company applies the global standard regardless (SIM-HR-002 1.12). The Company complies with the **Tax File Number** rules and the **Notifiable Data Breaches** scheme (assessment of suspected eligible breaches within 30 days; notification to the OAIC and affected individuals as soon as practicable). Serious invasions of privacy may also give rise to a statutory claim.
- **Workplace surveillance (NSW).** The Company must give **at least 14 days' written notice** before starting computer, camera or tracking surveillance of employees (or a shorter period if the employee agrees), stating the kind of surveillance, how it is carried out, whether it is continuous or intermittent, and whether it is ongoing or for a limited period. Surveillance of change rooms, toilets and showers is prohibited. **Covert**

surveillance requires a magistrate's authority. The notice for monitoring in SIM-IT-001 4.8 is given at onboarding and updated before material changes. Camera surveillance is signposted.

- **Data requests.** Employees can ask `privacy@simtora.example` for access to or correction of their data.
- **Records.** The Company keeps employee records (employment terms, pay, hours, leave, super, termination) for **7 years** as the Fair Work Act requires, and tax and super records as the ATO requires. Candidate data: 12 months.

8.3 Confidentiality, IP and Restrictive Covenants

- **Confidentiality** applies during and after employment (SIM-HR-001 1.8).
- **IP.** Work created in the course of employment belongs to the Company's parent, Simtora Technologies, Inc., under the employment contract and an assignment; the employee also gives **written moral-rights consents** (Copyright Act 1968 (Cth)) for the Company's and its group's use, as the contract states.
- **Restrictive covenants.** Post-employment restraints (non-compete, non-solicitation) are enforceable only to the extent they protect a legitimate business interest and are reasonable in scope, duration and area; courts may read them down (Restraints of Trade Act 1976 (NSW)). Simtora uses them sparingly (non-compete no longer than 6 months, non-solicitation no longer than 12 months), only for senior or sensitive roles and only with Legal approval. Legal monitors announced government reforms to non-competes.
- **Protected rights.** Nothing in a contract prevents protected disclosures, communication with unions or regulators, discussion of pay and conditions, or a claim under the Fair Work Act.

Part 9 – Performance, Discipline and Separation

9.1 Performance Management

SIM-HR-001 2.1 applies. Performance concerns are raised early, in writing where serious, with clear expectations, support and a reasonable time to improve. A performance improvement plan lasts **60 to 90 days**. An employee may bring a **support person** to formal performance meetings.

9.2 Warnings and Misconduct

- **Procedure.** (1) Investigate fairly and promptly. (2) Tell the employee in writing what the concern is and give them a reasonable opportunity to respond, with a support person. (3) Decide on a proportionate outcome (verbal or written warning, final warning, demotion where contractually permitted, or dismissal). (4) Confirm in writing with a right to respond.
- **Suspension** with pay may be used during an investigation where necessary (the Company must have a contractual right or a reason).
- **Serious misconduct** (such as theft, fraud, assault, serious breach of safety, sexual harassment, or serious breach of confidentiality) may justify **summary dismissal** without notice after a fair process.
- The employee's **right to a support person** applies at any discussion about discipline or termination (the Fair Work Commission treats refusal as a sign the process was unfair).

9.3 Resignation

- **Notice: 4 weeks** in writing after probation (1 week in probation). The Company may waive part or all of the notice, or pay in lieu.
- A handover plan is agreed (SIM-HR-001 9.1). Annual leave can be taken during notice by agreement; unused leave is paid out.
- Garden leave on full pay is possible by agreement.

9.4 Termination by the Company and Redundancy

Notice. Under the NES, the Company gives at least: **1 week** (service up to 1 year), **2 weeks** (1–3 years), **3 weeks** (3–5 years), **4 weeks** (more than 5 years), plus **1 additional week** if the

employee is **over 45 with at least 2 years' service**. The contract provides **4 weeks** after probation, or the NES period if longer. Payment in lieu of notice is allowed.

Valid reason and fair process. A dismissal must not be **harsh, unjust or unreasonable**. The Company has a **valid reason** related to capacity or conduct (or a genuine redundancy), **notifies** the employee of the reason, gives them a chance to respond with a support person, considers the response, and handles any performance issue with prior warnings. The Small Business Fair Dismissal Code does not apply to Simtora, because the Company, counting associated entities, is not a small business.

Unfair dismissal. An employee who has completed the **minimum employment period of 6 months**, and is covered by an award or agreement or earns under the high income threshold, may apply to the Fair Work Commission **within 21 days** of the dismissal taking effect. **General protections** claims (dismissal for a prohibited reason, or for exercising a workplace right) are also available, **within 21 days** for dismissal-related claims.

Redundancy. A genuine redundancy occurs when the job is no longer needed due to operational change and redeployment within the group is not reasonable. The Company:

1. consults employees (and representatives) as the award or Act requires, and considers redeployment and voluntary options;
2. gives notice (above);
3. pays **redundancy pay** under the NES, which is based on years of continuous service:

Years of service	Weeks of pay
Less than 1	0
1 but less than 2	4
2 but less than 3	6
3 but less than 4	7
4 but less than 5	8
5 but less than 6	10
6 but less than 7	11
7 but less than 8	13
8 but less than 9	14
9 but less than 10	16
10 or more	12

4. notifies Services Australia (Centrelink) if 15 or more employees are to be dismissed for economic reasons.

The Company may also pay a severance supplement above the NES, subject to a release agreement that complies with the law and protected rights.

Other limits. The Company does not dismiss employees because of temporary absence due to illness or injury (certified), parental or other protected leave, a workplace complaint, union membership, or any protected attribute. HR and employment counsel review every dismissal before it is delivered.

9.5 Final Pay and Offboarding

Item	Rule
Final pay	Wages to the last day, unused annual leave and loading, pro-rata long service leave where owed, payment in lieu of notice and redundancy pay where owed, within 7 days of the last day (and no later than the next pay day)
Super	Paid on final pay as usual
Employment separation certificate / statement of service	Provided on request
Property	Returned on or before the last day; no wage withholding to force a return
Access	IT removes access at or before the end (SIM-IT-001 3.3)
Exit interview	Offered
References	Through HR only (SIM-HR-001 9.5)
Records	8.2

Part 10 – Local Practices

10.1 Working with Sydney and U.S. Teams

Sydney is 17 to 19 hours ahead of San Francisco, depending on daylight saving. The best shared window with San Francisco is **3:00–4:30 p.m. Pacific = the next morning in Sydney**, and the best window with Lahore is **9:00 a.m.–12:00 noon Lahore = about 2:00–6:00 p.m. Sydney**. Sydney does not routinely take calls after **7:00 p.m.** or before **7:00 a.m.** Sydney time (SIM-HR-002 1.6). Sydney staff hand off incidents to Lahore and London each day.

10.2 Culture and Community

The Company acknowledges the Traditional Custodians of the land on which the Sydney office stands and works on a **Reconciliation Action Plan**. Employees celebrate NAIDOC Week, Harmony Day and similar events. Casual dress is the norm (SIM-HR-001 5.4).

10.3 Sydney Specifics

- **Bushfire smoke, heat and storms.** Remote working is available on request on days of hazardous air quality or severe weather (SIM-FAC-001).
 - **Summer break.** Many colleagues take leave from late December to mid January; coverage plans are agreed by November 1.
 - **Public transport and rideshare:** commuting costs are not reimbursed except under 6.3.
-

Appendices

Appendix A – Key Terms Summary and Acknowledgement

Item	Summary
Employer	Simtora Technologies Pty Ltd
Hours	38 per week, Mon–Fri; core 10:00–15:00
Probation	6 months; 1 week notice
Notice after probation	4 weeks (or NES scale if longer)
Pay	Fortnightly, Friday, AUD
Superannuation	12% + 3% match; paid within 7 days of payday
Annual leave	25 days (20 NES + 5)
Personal/carer's leave	10 days a year, cumulative
FDV leave	10 days a year
Parental	Government PPL up to 26 weeks; Simtora 12 weeks / 6 weeks at 100%
Long service leave	2 months after 10 years; pro-rata after 5
Unfair dismissal	After 6 months; 21 days to lodge

Acknowledgement. I have received this Australia HR Manual (version ____), my employment contract, and the **Fair Work Information Statement** on or before my first day. I have received notice of workplace surveillance at least 14 days before it starts (or I agreed to a shorter period). I understand that nothing in this manual reduces my entitlements under the National Employment Standards, any award, or any law.

Employee name (print)	
Signature	
Date	
Employee ID / Role	

Appendix B – Public Holiday Calendar Rules

Holiday	Date
New Year's Day	January 1
Australia Day	January 26
Good Friday	Moves
Easter Saturday	Moves
Easter Sunday	Moves
Easter Monday	Moves
Anzac Day	April 25
King's Birthday	Second Monday in June
Labour Day	First Monday in October
Christmas Day	December 25
Boxing Day	December 26

NSW gazettes public holidays each year. HR publishes the Simtora calendar by **December 1**.

Appendix C – Statutory Deadlines

Item	Deadline
Fair Work Information Statement	On or before first day
Flexible work request response	21 days
Superannuation (Payday Super)	Within 7 days of payday
Standard Choice Form	Within 28 days of start
Pay slip	Within 1 working day of payment
Surveillance notice	At least 14 days before start
Unfair dismissal / general protections (dismissal)	21 days
Parental leave notice	10 weeks; confirm dates 4 weeks before
Notifiable incidents	Immediately
Notifiable data breach assessment	30 days
Records retention	7 years

Appendix D – Revision History

Version	Date	Author	Summary of change	Approved by
1.0	October 5, 2026	HR	Initial release	CEO (October 5, 2026)

End of document – SIM-HR-104